

Pratap Singh v. State of U.P. Electricity Deptt.

Allahabad High Court · Division Bench · 16 December 2010 · WRIT - C No. - 72954 of 2010 · **Writ disposed; liberty to seek instalments from Executive Engineer under cl. 6.14.**

HEADNOTE

A consumer seeking a mandamus to compel acceptance of electricity arrears in easy instalments was relegated to clause 6.14 of the Electricity Supply Code, 2005: liberty to make a written representation to the Executive Engineer, which the authority shall consider.

FACTUAL SUMMARY

The petitioner, Pratap Singh, approached the Allahabad High Court seeking a mandamus directing the State electricity department and the licensee to accept his electricity dues in easy instalments. He placed on record a bill dated 13 February 2010 for Rs.1,19,767. Counsel for the respondents submitted that under paragraph 6.14 of the Electricity Supply Code, 2005 the petitioner could request instalments from the Executive Engineer in writing, and that such a request would be considered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding electricity dues

HOLDING

A consumer who seeks to deposit outstanding electricity dues in instalments may make a written request to the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005, which the authority shall consider. Mandamus to compel acceptance of dues in easy instalments was not granted on merits; the writ was disposed of with liberty to pursue that Code route. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Clause 6.14 is the Code forum for a written instalment request to the Executive Engineer; a writ mandamus to compel instalments was not granted on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS SHOULD BE ALLOWED AND ON WHAT TERMS

Left for the Executive Engineer to consider on a written request under clause 6.14. ¶ 1